

The Constitution of 1956

Main Features: Federal State

- It aimed to balance the need for a strong central authority with the aspirations for provincial autonomy.
- Division of legislative powers through three lists – **Federal, Concurrent, and Provincial** – sought to clearly demarcate the spheres of influence for the central and provincial legislatures.
- The **Federal List** included subjects of national importance, such as defense, foreign affairs, currency, and inter-provincial trade, ensuring a unified national policy in these critical areas.
- The **Concurrent List** allowed for shared legislative responsibility on matters like education, health, and electricity, enabling both levels of government to act while maintaining federal oversight in case of conflicting legislation. The principle of federal paramountcy ensured the supremacy of federal law in such instances.
- The **Provincial List** granted exclusive legislative authority to the provinces on matters of regional concern, such as local government, agriculture, and law and order within the province, fostering regional self-governance.

Parliamentary System

- The choice of a **parliamentary form of government** reflected a commitment to representative democracy and the principle of ministerial responsibility.
- The **President**, as the **Head of State**, held a largely symbolic and ceremonial role, symbolizing the unity of the nation.
- The **Prime Minister**, as the **Head of Government**, exercised the real executive authority, leading the cabinet and responsible for the day-to-day administration of the country. Their authority derived from their leadership of the majority party (or a coalition) in the **National Assembly**.
- The principle of **collective responsibility** held the entire cabinet accountable to the National Assembly. A vote of no confidence could lead to the removal of the government, underscoring the legislature's power to hold the executive in check.

The Islamic Republic Identity

- The declaration of Pakistan as an **Islamic Republic** was a defining characteristic of the 1956 Constitution, reflecting the aspirations of a significant portion of the population for a state aligned with Islamic values.
- The constitution mandated that **no law should be enacted that was repugnant to the Holy Quran and Sunnah**. This provision aimed to ensure the supremacy of Islamic principles within the legal framework.
- The inclusion of provisions like the requirement for the Head of State to be a Muslim further highlighted the Islamic identity of the nation.

The Guarantee of Fundamental Rights

- The chapter on **Fundamental Rights** was a cornerstone of the 1956 Constitution, reflecting a commitment to individual liberties and the rule of law. These rights aimed to protect citizens from arbitrary state action and ensure a framework for a just and equitable society.
- The enshrined rights encompassed a wide spectrum of civil and political liberties, including:
 - ***Freedom of Expression***
 - ***Freedom of Assembly***
 - ***Freedom of Association***
 - ***Freedom of Religion***
 - ***Equality Before Law***
 - ***Protection Against Arbitrary Arrest and Detention***
 - ***Right to Property***

The Bicameral Federal Legislature

- The establishment of a **bicameral legislature** at the federal level, consist of the **National Assembly** and the **Senate**, was designed to ensure representation based on both population and the equality of the federating units.
- The **National Assembly**, as the lower house, was composed of directly elected members representing the constituencies based on population.
- The **Senate**, as the upper house, provided equal representation to each province, ensuring that the interests of all federating units, regardless of their population size, were safeguarded in federal legislation. This was a crucial mechanism to address concerns about potential dominance by more populous provinces. The Senate played a role in reviewing and amending legislation passed by the National Assembly, providing a check and balance within the legislative process.

The Independence of the Judiciary

- The 1956 Constitution recognized the crucial role of an **independent judiciary** in upholding the rule of law and safeguarding the constitution. This separation of powers was intended to prevent the concentration of authority and ensure accountability.
- The establishment of a hierarchical court system, with the **Supreme Court** as the final court of appeal, provided a mechanism for resolving legal disputes and interpreting the constitution.
- The judiciary was empowered with the authority of **judicial review**, allowing it to examine the constitutionality of laws passed by the legislature and actions taken by the executive. This power was essential for ensuring that all branches of government operated within the bounds of the constitution and for protecting the fundamental rights of citizens.

The Directive Principles of State Policy

- The inclusion of **Principles of Policy** (later known as Directive Principles of State Policy in subsequent constitutions) provided a set of guidelines for the state in formulating its laws and policies. These principles were intended to inspire and inform government action towards achieving social and economic justice.
- These principles covered a broad range of objectives, including:
 - *Promoting an Islamic way of life and Islamic education.*
 - *Ensuring social justice and the equitable distribution of wealth.*
 - *Raising the standard of living of the common people.*
 - *Providing opportunities for work and preventing unemployment.*
 - *Promoting international peace and understanding.*